
Journal

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Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

2005-04-21

Appeal No.

CIVIL APPEAL NO. 98 OF 2004

Judge

KHAWAJA MUHAMMAD SAEED CJ AND CHAUDHARY MUHAMMAD TAJ

Parties

RAJA NIAZ HUSSAIN (APPELLANT) VERSUS MUHAMMAD KHURSHID AND 3 OTHERS
RESPONDENTS

Lawyers

RAZA ALI KHAN, ADVOCATE FOR APPELLANT. MUHAMMAD FARID KHAN, ADVOCATE FOR
RESPONDENTS.

Statutes

PENAL CODE (XLV OF 1860) - SS. 427, 435 AND 436

Judgment

CHAUDHARY MUHAMMAD TAJ, J.-This appeal, by leave; is filed to challenge the judgment passed by the High Court on 24-5-2004 whereby a revision petition against the order of the trial Magistrate postponing the challan case till the disposal of civil suit was dismissed.

4 2. The facts are that a case under sections 427, 435 and 436, APC p was registered against the accused-respondents on the complaint of the appellant which, after investigation, was challaned before the Magistrate 1st Class, Muzaffarabad. During the trial an application was moved on behalf of the accused to postpone the proceedings till the decision of civil suit. The trial Court accepted the application and passed the order accordingly. The order was challenged before the High Court through a revision petition by the appellant herein which was dismissed. Hence, this appeal.

Mr. Raza Ali Khan, the learned counsel representing the appellant, argued that the case has been challaned before the competent Court of jurisdiction registered on the complaint of the appellant. The offences are cognizable, therefore, no law provides for postponement of the trial on the ground of filing a civil suit for damages on behalf of father of the complainant as a joint owner. The trial Court as well as the learned Chief Justice in the High Court overlooked the law, therefore, the order is not maintainable.

4. Mr. Muhammad Farid Khan, who appeared on behalf of accused-respondents, while defending the order, argued that father of the complainant has filed a suit for damages, therefore, till the decision of this fact that the property belongs to father or the son the proceedings in the criminal Court may be postponed for the ends of justice, therefore, the order was rightly recorded by the trial Court and upheld by the High Court. The learned counsel referred to the following authorities in support of his contentions:-- (1) N. Manak Ji v. Fakhar Iqbal and another (1969 SCMR 198), w (2) Faqir Muhammad and others v. Ch. Ali Muhammad and others (1992 PCr.LJ 1085) and (3) Tahirul Islam v. The State and another (NLR 1984 SCJ 368).

5. We have heard the learned counsel for the parties and also gone through the record. A case under sections 427, 435 and 436, APC stood challaned before the Magistrate 1st Class Muzaffarabad on 30-4-1999. During the pendency of the trial an application on behalf of accused-respondents was moved to postpone the trial till the disposal of a civil suit filed for damages on behalf of father of the complainant. The application was accepted and the trial was postponed till the decision of a civil suit. The order was challenged by the complainant through a revision petition before the High Court which was dismissed, therefore, the present appeal was filed.

6. The first question requiring determination is whether an offence committed by any accused and the case challaned before the competent Court of jurisdiction after investigation could be stayed or postponed on account of mere filing a civil suit. It may be mentioned that an offence committed by any accused person has to be tried and decided in accordance with law unless the nature of the case is such which may depend upon the decision of the civil suit irrespective of the fact whether a civil suit challenging the same subject-matter has been filed.

7. In the present case cognizable offences were committed by the accused-respondents for which the trial was in progress when the learned trial Magistrate postponed the proceedings till the decision of civil suit. No grounds whatsoever were given by the trial Magistrate as well as by the learned Chief Justice in the High Court that how the fate of the case was dependent upon the decision of civil suit. As held above no such reason is found to postpone the proceedings. Both the proceedings are independent in nature. The criminal trial is being conducted on behalf of the

State against the accused-respondents for committing the aforesaid offences, if proved the accused-respondents are to be convicted and punished. The other proceedings in the nature of civil suit were filed on behalf of father of the complainant claiming damage to his property by setting vehicle on fire. Though the civil suit was filed on the basis of some acts which attracted the criminal offences. Therefore, challan was * submitted. It would be relevant to mention that the proceedings of the challan or its ultimate decision would not bar the institution of ' proceedings such as the suit for damages. Conversely, the civil suit would not be a bar for proceedings against an accused person against whom a challan has been submitted under, certain offences. The * proposition came under consideration before a Full Bench, case titled Adam v. Collector of Customs, Karachi (PLD 1969 SC 446) where it was held as under:- M

The proceedings taken by the Custom Authorities for the confiscation of the goods are more in the nature of departmental proceedings which have been characterized in English and American jurisprudence as proceedings in condemnation of the goods for purposes of revenue and are regarded as proceedings of a civil nature, despite their penal character. The Sea Custom Authorities are not a judicial tribunal in the strict sense of that term nor can their verdict of confiscation of the goods be regarded, as a punishment by the Court after regular trial for the purpose of supporting a plea of double jeopardy. On the other hand, the proceedings for the criminal prosecution of a person who commits an offence under the Act in relation to those goods, fall in a separate category. They are judicial proceedings for the determination of the guilt of the person concerned for commission of the alleged offence and entailing a punishment for the same. Both are concurrent remedies but each is independent of the other. They cannot, therefore, be deemed to be mutually exclusive. The contention of the learned counsel for the appellant, therefore, that adjudication proceedings by the Custom Authorities and the prosecution of the offender in a Criminal Court both of which are based on a common single act amount to 'double jeopardy' is wholly misconceived. The doctrine of 'double jeopardy' which is a term of American Law corresponding to the principle of *autre fois acquit and autre fois convict* of the English Law as embodied in section 403 of the Criminal Procedure Code, Prohibits at duplicate trial and a duplicate punishment for the same offence. But it is quite clear that the adjudication proceedings for the confiscation of the goods under the Act neither involve a criminal prosecution nor a punishment for an offence. No trial of the offender takes place for any offence nor is any punishment awarded to the offender.

Therefore, no question of double jeopardy arises when simultaneously or subsequently a trial is held to determine the guilt of the individual who has been concerned in the offence in respect of the goods which are the subject-matter of the adjudication proceedings. And since the proceedings for adjudication by the Custom Authorities and the criminal prosecution of the offender in the Court are not inter-dependent, they can proceed simultaneously and neither can remain under suspension for the sake of the other....." The Supreme Court of Pakistan in a case subsequently coming before them, reiterated the earlier view in a case reported as Central Board of Revenue and another v. Khan Muhammad (PLD 1986 SC 192) in the following words:- "11. The other contention advanced by the learned Deputy Attorney-General was that the prosecution proposed to be launched against the respondent on the same facts has been seriously prejudiced by the High Court having interfered with the adjudication proceedings taken against the respondent. The apprehension entertained by the learned Deputy Attorney-General is legally unfounded and untenable. It has been held by this Court in Adam v. Collector of Customs (PLD 1969 SC 446) that the criminal prosecution of a person who commits an offence under the Sea Customs Act in relation to the goods which are seized under the said Act by the Customs Authorities, falls in a separate category. While the confiscation proceedings taken by the Customs Authorities are in the nature of departmental proceedings in condemnation of goods for the purpose of revenue, the proceedings, for criminal prosecution of a person who commits an offence under the Act in relation to those goods, are judicial proceedings for determination of

the guilt of the person concerned for commission of the alleged offence and entailing the punishment for the same. It was held that both are concurrent remedies but each is independent of the other and therefore, they cannot be deemed to be mutually exclusive. They can proceed simultaneously and neither can remain under suspension for the sake of the other. This decision is sufficient to dispel any doubt entertained by the Department in proceeding with the trial of the accused concerned with the goods involved in this case.” % The Supreme Court of Pakistan in a recent case titled *Government of N.-W.F.P. through Secretary, Finance, Excise and Taxation Department, Peshawar and 2 others v. Aurangzeb* (2003 SCMR 338) gave the following verdict:-

“8. Even otherwise, the prosecution on criminal charge and departmental disciplinary proceedings were entirely different as one relates to the enforcement of criminal liability whereas the other is concerned with the service discipline, as such, acquittal on criminal charge had no bearing on disciplinary proceedings. Reference may be made to *Amir Abdullah v. Superintendent of Police and others* (1989 SCMR 333).” Similar controversy arose in a case titled *Penumarti Janikamma v. Chunduru Appanna* (AIR 1957 Andh. Pra. 771) where the Supreme Court of India resolved it as follows:- * * * h “This only goes to show that the avowed policy of the Criminal law is to bring the accused to justice as expeditiously as possible so that if he is found guilty, he may be punished; if not he may be acquitted as early as can be. No doubt, it is open to a party to make a request for the stay of the criminal case pending disposal of the civil suit between the same parties on the same subject-matter, and the Magistrate according to some of the High Courts, even apart from the provisions of S. 344, Criminal P.C., has inherent jurisdiction to say proceedings before him or to postpone the inquiry; but these discretionary powers are to be exercised sparingly and only if there is sufficient and reasonable cause. ”

The terms ‘reasonable cause’ is not defined nor any such definition is possible. It all depends upon the circumstances of each case. The nature of the criminal proceedings, the policy of criminal law and the spirit of S.344, Criminal P.C., must however be kept in view in judging the circumstances of the case. As observed by their Lordships of the Supreme Court in *M.S.*

Sheriff v. State of Madras, AIR 1954 SC 397 as between the civil and criminal proceedings ordinarily the criminal matters should be given precedence. The reasons for the same are found in the following observations of their Lordships: ‘The public interests demand that criminal justice should be swift and sure; that the guilty should be punished while the events are still fresh in the public mind and that the innocent should be absolved as early as is consistent, with a fair impartial trial. Another reason is that it is undesirable to let things slide till memories have grown too dim to trust/ Another consideration which must weigh with the Court, is that the criminal law aims at not only the procurement of speedy justice for the accused but also that he should have fair and impartial trial, free from all that is likely to cause serious prejudice to him. If the continuance of a criminal proceedings pending a civil suit is likely to seriously prejudice the accused judicial discretion, certainly would warrant the stay of the criminal proceedings.

But this is only possible if the points at issue in both the proceedings are precisely the same and finding of the civil Court will dispose of the point, which has arisen in a criminal case. The mere fact that the point which is mainly in issue in a criminal Court is in some form incidentally in issue in a civil case, need not necessarily be a sufficient ground for stay of a criminal trial.

Besides one would do well to bear in mind that in the criminal Court the guilt must be established beyond reasonable doubt, which demands a high degree of proof, and whereas in a civil case the proof of a circumstance may depend on a mere balance of probabilities. But it cannot on this account, be concluded that the finding or decision in a civil case can have no bearing on the fact to be proved in a criminal case.” 8. In view of the above discussion, the criminal proceedings cannot be postponed or stayed as both the civil and criminal are independent and are not dependent upon each other. Therefore, the order passed by the trial Magistrate and thereafter

dismissal of the revision petition by the High Court are against law which are not maintainable, therefore, are set aside by accepting the appeal. The criminal case shall proceed in accordance with law. The case-law referred to by the learned counsel for the accused-respondents, with its distinct facts, is not applicable to the case in hand as such is not discussed.

Appeal accepted

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